

SENATE BILL 21

By Pody

AN ACT to amend Tennessee Code Annotated, Title 1; Title 3; Title 4; Title 5; Title 6; Title 7; Title 8; Title 13; Title 14; Title 43; Title 45; Title 49; Title 50; Title 53; Title 59; Title 60; Title 62; Title 63; Title 65; Title 66; Title 68; Title 69 and Title 70, relative to state sovereignty.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 4, Chapter 1, Part 1, is amended by adding the following as a new section:

(a) As used in this section:

(1) "Educational institution" means:

(A) A public school operated by an LEA or this state, or pursuant to a charter agreement, that provides education to students in the twelfth grade or below; or

(B) A public postsecondary institution that provides education to students at a level above the twelfth grade;

(2) "Governmental entity":

(A) Means any branch, department, agency, commission or instrumentality of state government, any official or other person acting under color of state law, or any political subdivision of this state; and

(B) Includes an educational institution; and

(3) "International policymaking organization":

(A) Means a non-governmental entity that issues model policies or guidelines or proposed laws or rules that pertain to a particular subject matter or range of subject matter areas of public policy and which may be

adopted in whole or in part by an instrument of government as the policy of that governing body; and

(B) Includes, but is not limited to, the World Health Organization, the United Nations, and the World Economic Forum.

(b)

(1) An international policymaking organization has no jurisdiction or authority within this state or a political subdivision of this state.

(2) A law passed by the United States congress or a rule promulgated by a political subdivision of the federal government of the United States that is based in whole or in part on a policy or guideline of, or a proposed law or rule issued by, an international policymaking organization has no jurisdiction or authority within this state or a political subdivision of this state, and a person acting on behalf of a governmental entity shall not enforce or attempt to enforce such law or rule within this state.

(3) A governmental entity shall not adopt, enact, implement, enforce, or attempt to enforce a policy or guideline of, or a proposed law or rule issued by, an international policymaking organization unless the governmental entity is authorized to do so by state law.

SECTION 2. This act takes effect upon becoming a law, the public welfare requiring it.